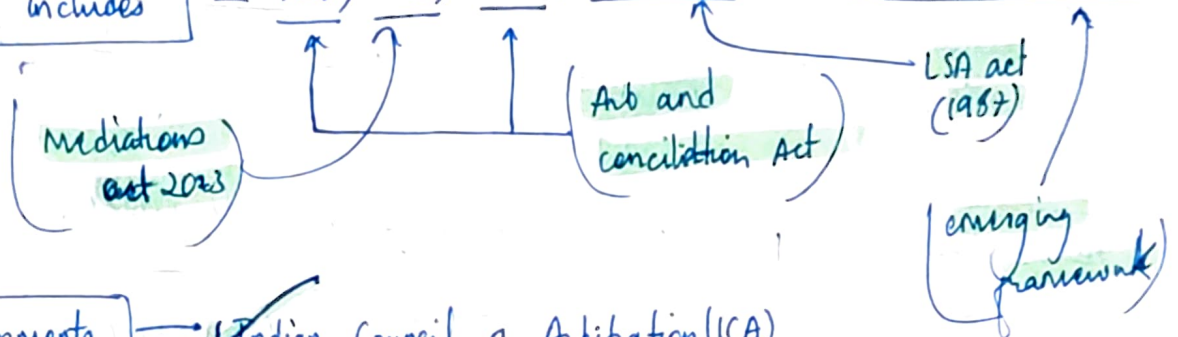


(ADR) Alternative Dispute Resolution, Litigation and justice delivery in India.

① ADR → 4.8 ~~lakh~~ crore cases pending.

↳ "justice delayed" into "justice denied"

② ADR includes — Arb, Med, Conc., Lok Adalats and Online Dispute Resolution



Developments

- ✓ Indian Council of Arbitration (ICA)
- ✓ Mumbai Centre for international Arb (MCIA)
- ✓ Delhi IAC

✓ Lok Adalats : very effective at volume disposal
50 lakh cases each year on an avg.

Challenges

- ✓ Awareness and access gaps
- ✓ Judicial overreach into arbitration — undermine finality of arbitration

ADR

✓ ADR : people prevent going pre-litigation

✓ Judiciary overburdened

- ↳ 0.09% of GDP — judiciary
- ↳ 35% of Supreme Court and lower judiciary judges seat vacant

Black coat syndrome

— highlighted by Pres. Draupadi Murmu
— people have stigma with courts.

Advantage

✓ Faster resolution (online) Sikhumi

brings pending cases down

✓ Inexpensive and finality ← (eg ADR)

✓ Can strengthen NODP and ease access to justice delivery

Recent Developments

Consumer justice report recommends time bound appointment

Strength of SC - 37 judges - low burden on subordinates

e-commission

ODR

National Judicial Data Grid

and time bound delivery

AI assisted case mgmt

Quick justice - affordable justice

Way forward

Make ADR THE DEFAULT, NOT THE FALLBACK

can shape the needs of people

a judicial afterthought

ADR expansion - every village and block

Fix human resources fill judicial vacancy adopt ad-hoc judges

Build district level infra } some offices exist just on paper

Sector specific disputes

IRDA
PERDA
SEBI

can channel individual categories towards themselves

thus lowering burden overall

① Train people - online, A/M/C

② Growth of e-comm and socials : quick-low cost settlement

③ Strengthen regulation - esp for ODR ← no statutory present

④ But enforcement uncertain / framework uncertain / Trust deficit

ODR and ADR

— a layer top on conventional adjudication